

**Constitution of a "State Level
Monitoring Committee" for
management of Open Correctional
Institutions (OCIs)**

**Government of Maharashtra
Home Department
Government Resolution No.: JLM-0624/e-1633741/Prison-2
Mantralaya, Mumbai - 400032
Dt.16.06.2026**

Read:

1. Judgment dt.26.02.2026 of the Hon.Supreme Court in W.P.(Civil) No.1082 of 2020.
2. NALSA letter No.NALSA-CM/05/2024/3623/J, dt.18.03.2026.
3. Maharashtra Legal Services Authority (MALSA) letter No.MALSA/ 2026/ 2579, dt.15.06.2026.

Introduction -

The Hon. Supreme Court of India in Writ Petition (Civil) No.1082/ 2020, passed judgment dt.26.02.2026, emphasizing that overcrowding in prisons is a systemic issue and recognized Open Correctional Institutions (OCIs) as a humane and cost-effective solution. To ensure institutional accountability and effective implementation of the court's directives, the Hon. Supreme Court has mandated the constitution of a "Monitoring Committee" in every State and Union Territory. In accordance with these directions, the State Government has decided to constitute the State Level Monitoring Committee for the management and expansion of OCIs in Maharashtra.

Government Resolution:-

1. The Government of Maharashtra hereby constitutes the 'State level Monitoring Committee for the Management of OCIs as follows:

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|--|-----------------------------|
| 1) Hon.Smt.Justice Bharati Dangre,
Judge, High Court of Judicature at Bombay. | Chairperson |
| 2) Smt.Radhika Rastogi,
Additional Chief Secretary (Appeals & Security),
Home Department, Government of Maharashtra. | Member |
| 3) Shri Suhas Warke,
Additional Director General of Prisons and
Correctional Services, Maharashtra State. | Member -
Secretary |

2. The terms of reference of this Committee are -

- i. Ensuring compliance with the directions issued by the Hon. Supreme Court of India regarding OCIs.
- ii. Overseeing the utilization, functioning and expansion of OCIs.
- iii. Facilitating the timely identification of eligible prisoners from closed prisons and ensuring their transfer to OCIs.
- iv. Fill existing vacancies in OCIs and establish new facilities (open & semi-open facilities), where ever necessary.
- iv. Periodical review of the progress and addressing systemic or administrative impediments hindering the implementation of the OCI framework.
- v. The first status report shall be placed on record before the Hon. High Court of Bombay on or before 21st August, 2026.
- vi. Quarterly Reports: The Committee shall submit status reports to the Hon. High Court of Bombay at regular quarterly intervals.
- vii. A consolidated annual report will be forwarded to the Hon. Supreme Court by the Registrar General of the High Court by 31st March of every year.

3. The first meeting of the Monitoring Committee shall be convened within four weeks from the date of issuance of this order. Subsequent meetings shall be held as determined by the Committee.

4. This Government Resolution is published on the official website www.maharashtra.gov.in of Government of Maharashtra and its computer no is 202606161827588129.

By the order and in the name of Hon. Governor of Maharashtra.

(Sugriv Dhapate)

Joint Secretary, Government of Maharashtra

To:

1. The Registrar, Hon. Supreme court of India, New Delhi.
2. PA to Smt. Justice Bharati Dangre, Judge, High Court of Judicature at Bombay.
3. Member Secretary, National Legal Services Authority, New Delhi.
4. The Registrar General, Hon. High Court of Mumbai.
5. The Executive Chairman, Maharashtra State Legal Services Authority.
6. The Additional Chief Secretary (Appeals & Security), Home Department, Mantralaya, Mumbai.

7. The Additional Director General of Prisons and Correctional Services, Maharashtra State, Pune.
8. Office of Hon.Chief Secretary, Maharashtra State, Mantralaya Mumbai.
9. The Principal Secretary & RLA, Law & Judiciary Department, Mantralaya, Mumbai.
10. Select File-P-2, Home Department.
